

COLONIAL MOBILE MANOR PROSPECTUS

1. THIS PROSPECTUS CONTAINS VERY IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND YOUR FINANCIAL OBLIGATIONS IN LEASING A MOBILE HOME LOT. MAKE SURE THAT YOU READ THE ENTIRE DOCUMENT AND SEEK LEGAL ADVICE IF YOU HAVE ANY QUESTIONS REGARDING THE INFORMATION SET FORTH IN THIS DOCUMENT.
2. THE STATEMENT CONTAINED HEREIN ARE ONLY SUMMARY IN NATURE. A PROSPECTIVE LESSEE SHOULD REFER TO ALL REFERENCES, ALL EXHIBITS HERETO, THE CONTRACT DOCUMENTS, AND SALES MATERIALS.
3. ORAL REPRESENTATIONS SHOULD NOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE PARK OWNER OR OPERATOR. REFER TO THIS PROSPECTUS (OFFERING CIRCULAR) AND ITS EXHIBITS FOR CORRECT REPRESENTATIONS.
4. UPON DELIVERY OF THE PROSPECTUS TO A PROSPECTIVE LESSEE, THE RENTAL AGREEMENT IS VOIDABLE BY THE LESSEE FOR A PERIOD OF FIFTEEN (15) DAYS.



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PROSPECTUS FOR

1. NAME AND ADDRESS OF PARK

Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

2. RECEIPT OF NOTICES AND DEMANDS

The person authorized to receive notices and demands on the Park owner's behalf is:

The Park Manager
Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

3. PARK PROPERTY DESCRIPTION

A. Lots, Set-Backs, and Minimum Separation between Mobile Homes

235 Lots in the Park
Approximate size: 50' x 75'

The Set-Back requirement is 10 foot, with 10 foot separation distance between mobile homes.

B. Shared Facilities

The maximum number of lots using shared facilities is five hundred (500).

4. RECREATION AND COMMON FACILITIES

The Mobile Home Park has a clubhouse, which is located at the front of the Park, and which has a single room of approximately 4,300 square feet, with a capacity of four hundred (400) persons. The clubhouse is used for social activities.

DAYS AND HOURS OF OPERATION

The clubhouse is open seven (7) days a week, from 9:00 a.m. to 10:00 p.m., and its use must be approved by Park management.

PERSONAL PROPERTY

There is no personal property available for the mobile home owners.

FUTURE IMPROVEMENTS

All improvements to the Mobile Home Park are now complete.

5. PARK MANAGEMENT AND MAINTENANCE

The manager of the Mobile Home Park is responsible for the maintenance and operation of the Park. The manager's office is in the clubhouse, and will have posted hours and days of operation. Any questions concerning Park operations should be directed to the Park manager.

6. MOBILE HOME OWNER REQUIRED IMPROVEMENTS

As a condition of their occupancy in the Mobile Home Park, new residents, after June 4, 1984, must install the following within forty (40) days after the home is placed on the lot:

Remove hitch, skirt home with aluminum or brick, concrete driveway to the street (12' width), aluminum carport (minimum 12' x 32'), utility shed build to the roof of the carport (minimum 6' x 8'), concrete/brick patio with aluminum cover and screened (minimum 100 square feet), concrete or brick steps at each entrance to the home, fully sodded lawn, and a brick flower planter in front of the home (minimum size 2' x 8' x 2').

7. UTILITIES AND OTHER SERVICES

Water is provided by the City of Palmetto and is billed directly to the mobile home owner. The home owner is responsible for any repairs to the home's water spigots and/or water line from the home to the main line. Park owner is responsible for the maintenance of the main line. The utility charge is not included in the lot rental amount.

SEWAGE

Sewage disposal is provided by the City of Palmetto, and is billed to the mobile home owner. Sewer disposal fees are not included in the monthly lot rental amount. The in-ground connection and the sewer line from the home to the main line are the mobile home owner's responsibility. The Park owner is responsible for the maintenance of the

main line.

WASTE DISPOSAL

Garbage and trash collection are provided curbside by the City of Palmetto and is billed to the mobile home owner, and are not included in the lot rental amount.

STORM DRAINAGE

Any storm drains are provided by and maintained by the Mobile Home Park by natural run-off.

ELECTRICITY

Electricity is provided by Florida Power & Light Company, which bills each home owner directly. Florida Power & Light is responsible for any main electrical lines. The home owner is responsible for the electric bill and for the electrical lines to the home or any connection outside the home, including the utility shed connections, breaker and outside receptacles. The cost of electricity is not included in the lot rental amount.

CABLE TELEVISION

Cable TV is not available.

8. INCREASES IN LOT RENTAL AMOUNT

The current lot rental amount of \$_____ is in effect until _____. At the end of the period, the lot rental amount and other charges may be increased with ninety (90) days notice to the home owner. Factors which affect lot rental amount are charges for water, sewer, garbage, trash removal, maintenance, repairs, gas, electricity, insurance, office, telephone, management, television service, taxes, licenses, government fees, accounting fees, legal fees, and the value of the Park. An increase in one or more of the factors may result in an increase in the home owner's lot rental amount. The lot rental amount may be raised a minimum of \$25.00 per month and up to a maximum of \$25.00 per month plus eighteen (18) times the Consumer Price Index (CPI) per month, whichever is greater. The CPI is the U.S. Department of Labor, U.S. City Average, All Urban Consumers, 1976 = 100, or in the event of the discontinuation of publication of the CPI, then an alternative index generally accepted as the replacement index for the CPI.

The lot rental amount is based on occupancy of 1 or 2 adults. Each additional person will be charged \$_____ per year, payable at \$_____ per month. The charge for an non-sufficient funds (NSF) check is \$_____. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35. Rent received late and after the tenth of the month is subject to additional rent of \$75. Failure by home owner to properly maintain the home's

lawn will cost the home owner \$50.00 per mowing, trimming and edging...

9. PARK RULES AND REGULATIONS

- A. Current Park Rules and Regulations - see Exhibits.
- B. Changes in Rules and Regulations

The Mobile Home Park owner shall give ninety (90) days written notice of any change in Park rules and regulations. Rules adopted as a result of restrictions imposed by government entities may be enforced prior to the expiration of the ninety (90) day period. A committee, not to exceed five (5) in number, designated by a majority of the mobile home owners shall meet with the Park owner to discuss such changes within thirty (30) days of the notice from the Park owner.

10. ZONING CLASSIFICATION

Present zoning of the Mobile Home Park is RMH. The permitted use under the zoning classification is mobile home park. No commercial or industrial use is presently allowed.

11. ZONING

The present zoning of the Mobile Home Park is RMH. The name of the zoning authority which has jurisdiction over the land comprising of Mobile Home Park is the City of Palmetto.

The Mobile Home Park owner has no plans to seek a change in the use of the land.

12. EXHIBITS

- A. Rules and Regulations of the Mobile Home Park.
- B. Lease Agreement between Park owner and mobile home owner.
- C. Copy of the Mobile Home Park layout.

13. Approved by the Florida Division of Condominiums, Time Shares and Mobile Homes on _____.

Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in

the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

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20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aerials are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #____, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager
900 - 9th Avenue East
Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP
900 - 9th Avenue East
Palmetto, Florida 34221.

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: Aug 20, 2024

TO: Patricia Everingham/Alisa Everingham FROM: Colonial Manor MHC Holdings, LLC
and All Unknown/Unauthorized 900 9th Avenue East
Occupants Palmetto, Florida 34221
900 9th Ave East #, Lot # 142 Telephone: (941) 722-3191
Palmetto, Florida 34221 Cheryl Peske, Manager
Certified Mail: #
7622 0410 0002 9525 9460
and All Unknown/Unauthorized Occupants
, Lot #
, Florida
Certified Mail: #

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 771.15 per month.

You have failed to pay all the past due lot rental amounts for the months of June 2024 thru August 2024, 2024, in the amount of \$ 2448.45, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 2448.45, payable to the address above.

- Rent on Aug 1, 2024 to AUG 31, 2024 in the amount of \$ 771.15
- Late Fee on AUG 1, 2024 to AUG 31, 2024 in the amount of \$45.00
- Last month balance in the amount of \$ 1632.30

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before AUG 27, 2024, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.



COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: 8-20-24

BY: Chad Roake
(Employee Signature)

COPY POSTED ON PREMISES (900 5th Ave East # 142, Lot # 142)

POSTED ON: 8-20-24 @ 2:00pm
(date/time)

POSTED BY: Chad Roake
(Employee Signature)

Colonial Manor MHC Holdings, LLC

VS.

7022 0410 0002 9525 9460

U.S. Postal Service
CERTIFIED MAIL - RECEIPT
 Domestic Mail Only

Post Office Information: 34221 PALMETTO, FL 34221

Certified Mail Fee: \$4.85

Postage: \$0.73

Total Postage and Fees: \$5.58

Postmark: 08/20/2024

Product: First-Class Mail® Letter

Weight: 0.10 lb 0.60 oz

Estimated Delivery Date: Thu 08/22/2024

Certified Mail® Tracking #: 70220410000295259460

Return Receipt Tracking #: 9590 9402 0522 3186 1872 16

Total: \$9.68

Grand Total: \$9.68

Credit Card Receipt: \$9.68

Card Name: MasterCard
 Account #: XXXXXXXXXX7721
 Approval #: 079365
 Transaction #: 1170
 AID: XXXXXXXX41010
 AL: MASTERCARD
 PIN: Not Required



PALMETTO
 520 7TH ST W
 PALMETTO, FL 34221-4703
 (800) 275-8777

08/20/2024 02:13 PM

Product	Qty	Unit Price	Price
First-Class Mail® Letter	1		\$0.73
Certified Mail®			\$4.85
Tracking #			\$4.10
Total			\$9.68
Grand Total:			\$9.68
Credit Card Receipt			\$9.68

Card Name: MasterCard
 Account #: XXXXXXXXXX7721
 Approval #: 079365
 Transaction #: 1170
 AID: XXXXXXXX41010
 AL: MASTERCARD
 PIN: Not Required